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[Execution Form]

# LIMITED LIABILITY COMPANY AGREEMENT

# OF

# PARAKEET HOLDCO II MIP, LLC

# DATED AS OF OCTOBER 11, 2024

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# LIMITED LIABILITY COMPANY AGREEMENT
# OF
# PARAKEET HOLDCO II MIP, LLC

**Dated as of October 11, 2024**

The parties to this Limited Liability Company Agreement (this "Agreement") of Parakeet HoldCo II MIP, LLC (the "Company"), a limited liability company organized pursuant to the Delaware Limited Liability Company Act, 6 Del. C. § 18-101 et seq. (the "Act"), dated as of October 11, 2024 (the "Effective Date"), are Parakeet Holdco II, LLC, a Delaware limited liability company ("Holdco"), and the individuals who may be admitted from time to time as Participant Members of the Company in accordance with Section 2 of this Agreement (collectively, the "Participant Members"). The Manager (as defined herein) and the Participant Members are sometimes referred to collectively as the "Members." Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in Section 13 of this Agreement.

RECITALS

A. The Company was organized on October 10, 2024, as a limited liability company under the Act by the filing of the Certificate of Formation of the Company (the "Certificate") with the office of the Secretary of State of the State of Delaware.

B. As of October 11, 2024, the Company became a member of Holdco, which entitles it to receive a portion of the distributions to the equity holders of Holdco pursuant to the Limited Liability Company Agreement of Holdco, entered into as of October 11, 2024 (as the same may be amended, restated, supplemented or otherwise modified from time to time, the "Holdco LLC Agreement").

C. As provided in the Parakeet HoldCo II MIP, LLC Equity Incentive Plan, a copy of which is annexed as Exhibit A to, and forms a part of, this Agreement (as the same may be amended, restated, supplemented or otherwise modified from time to time, the "Plan"), the Company may issue Management LLC Units to Service Providers of the Holdco Group.

The following are the terms of the Company's Limited Liability Company Agreement:

## 1. BUSINESS.

The Company shall hold Class P Units of Holdco, shall issue to certain Service Providers membership interests in the Company (in the form of Management LLC Units), and shall conduct any activities that the Manager determines to be incidental to the Company's acquisition, ownership and disposition of its interest in Holdco.

## 2. ISSUANCE AND GRANT OF MANAGEMENT LLC UNITS; ADMISSION OF PARTICIPANT MEMBERS.

The Manager from time to time may admit Service Providers as Participant Members of the Company and may issue to them membership interests in the Company designated as Management LLC Units in accordance with and subject to the terms of this Agreement (including the Plan). Each Management LLC Unit shall entitle the holder thereof to receive distributions from the Company of the amounts payable in respect of such Management LLC Unit in accordance with and subject to the Plan. The Plan, or the applicable Separate Agreement, will include the initial Distribution Threshold, and provide for such vesting,

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forfeiture, and other provisions, with respect to such Management LLC Units. The Plan is hereby incorporated into this Agreement and made a part hereof as if set forth at length herein.

## 3. MANAGEMENT OF THE COMPANY.

**3.1 Manager**. Holdco shall be the manager of the Company (the "Manager"); provided, however, that the Holdco Manager shall be entitled to designate a successor Manager conditioned, and to be effective upon, the consummation of a Sale of Holdco. The Company's business and affairs shall be managed by or under the direction of the Manager and no Participant Member shall have any right to vote or otherwise take part in the management or control of the Company's business or affairs. The Manager, in the performance of its duties as such, shall not owe the Company or its Members any fiduciary duties, including those types of fiduciary duties owed by the directors of a corporation to such corporation and its stockholders under the laws of the State of Delaware, and each Member hereto acknowledges the same and waives any claims it may have against the Manager for breach of such fiduciary duties. The immediately preceding sentence is expressly and unambiguously intended, and shall operate, to be the broadest waiver of fiduciary duties permissible under the law.

**3.2 Manager's Membership Interest**. The Manager shall not hold any Management LLC Units or any other equity interest in the Company.

**3.3 Powers of Manager.** In addition to the powers given to the Manager by law and by other provisions of this Agreement, the Manager shall have full power, in its sole and absolute discretion, to take any action that it considers necessary or desirable in connection with the management of the Company and the conduct of the Company's business purpose. The Manager's powers include, without limitation, (i) the powers set forth in the Plan as administrator thereunder, (ii) the power to exercise all of the Company's rights in connection with all matters relating to Holdco or any of its Subsidiaries or Affiliates (including any action required or permitted to be taken by the Company as a member of Holdco), (iii) the power to make such further agreements, modifications, and determinations with respect to the Company, membership interests in the Company, the Management LLC Units, and all matters incident and ancillary thereto, as the Manager may determine in its sole and absolute discretion and (iv) the power to resign for any reason or no reason and to appoint a successor Manager, as the Manager may determine in its sole and absolute discretion. The Manager's powers include the power to execute and deliver on behalf of the Company all such consents, waivers, documents and agreements as it determines appropriate, in its sole and absolute discretion, in connection with any action taken by it in its capacity as Manager under this Agreement, and no other signature or consent shall be required on behalf of the Company.

**3.4 Officers**. The Manager may appoint officers of the Company as the Manager determines desirable in the Manager's sole and absolute discretion. Any such officer shall have such duties, powers and responsibilities as the Manager shall determine. The officers of the Company need not be Participant Members and shall have the powers and duties delegated to them by the Manager. Officers of the Company shall serve at the pleasure of the Manager, and may be removed or replaced with or without cause, from time to time, in the Manager's sole and absolute discretion.

**3.5 Persons Employed by the Company**. The Manager may employ and reasonably compensate such persons, firms or corporations, including, but not limited to, accountants and attorneys, as the Manager reasonably deems advisable or necessary to carry on, assist or promote the Company's business. In addition, the Manager may utilize the services of persons employed by related persons or entities for tax, accounting, legal and other similar services rendered to the Company. The fact that a Member, or a person associated with a Member, is employed by, or is directly or indirectly interested in or connected with, any person, firm or corporation employed by the Company to render or perform any service shall not prohibit the Manager from employing or otherwise dealing with that person, firm or corporation,

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and neither the Company nor any of the Members shall have any rights in or to any income or profits derived therefrom.

## 4. CAPITAL CONTRIBUTIONS AND MEMBERSHIP INTERESTS.

**4.1 Capital Contributions.** No Participant Member shall be required to make any capital contribution to the Company.

**4.2 Membership Interests.** To the extent a membership interest is issued for services rendered to or for the benefit of the Company or Holdco or any Subsidiary or Affiliate thereof, except as otherwise provided, it will constitute a "profits interest" within the meaning of Revenue Procedures 93-27, 1993-2 C.B. 343, and 2001-43, 2001-2 C.B. 191. For the avoidance of doubt, it is intended that all Management LLC Units be treated as profits interests for tax purposes. To that end, the Company and each Member agree that it is the intention of the Members that allocations and distributions to each holder of a Management LLC Unit be limited to the extent necessary so that each Management LLC Unit qualifies as a profits interest, and this Agreement shall be interpreted consistently therewith. The recipient of a profits interest shall be treated as a Member with respect to the entire membership interest from the date such membership interest is issued. Each Member authorizes and directs the Company to, and the Company shall, elect to value such membership interests at their liquidation value on the date of the issuance to the extent such election is permitted pursuant to or in accordance with the finally promulgated successor to Proposed Regulation Section 1.83-3(l) and Notice 2005-43, 2005-1 C.B. 1221. The Company shall make any allocations of income, gain, loss, deduction or credit required by such successor rules (including any forfeiture allocations). The Company and each Member agree to comply with all of the requirements for such election and, notwithstanding anything in this Agreement to the contrary, authorize the Manager to amend this Agreement to the extent necessary or desirable as a result of such successor rules.

## 5. DISTRIBUTIONS.

Distributions received by the Company from Holdco in respect of the Company's Class P Units shall be made to the Participant Members pursuant to this Agreement and the Plan in respect of their respective Management LLC Units. The amount (if any) to be distributed to the Company by Holdco in connection with a distribution made by Holdco to the Holdco Members (either directly or indirectly pursuant to Section 5.03 of the Holdco LLC Agreement) shall be determined as set forth in the Plan and in particular, Article V thereof, and in each case, the Holdco LLC Agreement will provide that such distributions be made to the Company in respect of the Company's Class P Units. The amount and timing of distributions (if any) by the Company to Participant Members in respect of Management LLC Units shall be determined as set forth in the Plan and in particular, Article V thereof. For the avoidance of doubt, distributions may be made after satisfying any accrued and unpaid expenses of the Company.

## 6. TRANSFERS OF INTERESTS.

Except as otherwise provided in the Plan or a Participant Member's Separate Agreement, no Participant Member may sell, transfer, assign, pledge, grant a security interest in or otherwise dispose of or encumber, directly or indirectly ("Transfer"), all or any portion of his, her or its Management LLC Units (other than Transfers of Vested Management LLC Units by will or by the laws of descent and distribution), and any such purported Transfer shall be void. Each Participant Member shall indemnify the Manager, the Company and any other affected member of the Holdco Group for any and all related expenses and liabilities in the event that such Participant Member Transfers any of his, her or its Management LLC Units in violation of the provisions of this Section 6.

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## 7. EXCULPATION; INDEMNIFICATION.

**7.1 Exculpation**. To the extent not inconsistent with applicable law, none of the Manager nor any Member, Partnership Representative, Designated Individual, or any of their respective officers, directors, employees, partners, managers, members, shareholders or Affiliates, nor any officer of the Company, shall be liable, responsible or accountable in damages or otherwise to the Company or to any Member for any action taken or for any failure to act on behalf of the Company after the date hereof in connection with the business of the Company or the ownership of the Company's interest in Holdco or any of its Affiliates, unless the act or omission was performed or omitted fraudulently.

**7.2 Indemnification**. To the extent not inconsistent with applicable law, the Company shall indemnify and hold harmless the Partnership Representative, Designated Individual, Manager and all of their respective officers, directors, employees, partners, managers, members, shareholders and Affiliates, and all of the Company's officers, from any loss, liability, damage or expense (including, but not limited to, any judgment, award or settlement and attorneys' costs and fees and other costs or expenses incurred in connection with the investigation or defense of any actual or threatened action, proceeding or claim) arising out of (a) any acts or omissions or alleged acts or omissions in connection with their activities or the activities of any of their respective employees or agents on behalf of the Company or in connection with the business of the Company or the ownership of the Company's interest in Holdco or any of its Affiliates, and (b) any liability imposed upon any of them under any statute, rule or regulation applicable to the Company, or their respective officers, directors or employees; provided that the acts or omissions or the alleged acts or omissions upon which the action or threatened action, proceeding or claim is based were not performed or omitted fraudulently by the indemnified party. Any expenses incurred by any such indemnified party in connection with the matters referred to above, may, in the Manager's sole and absolute discretion, be promptly paid or reimbursed by the Company in advance of the final disposition of the proceeding, regardless of whether Holdco, the Company, a Member or any of their respective Affiliates has asserted claims against the indemnified party, upon receipt by the Company of (i) a written affirmation by the indemnified party of his, her or its good faith belief that he, she or it met the standard of conduct necessary for indemnification by the Company, and (ii) a written undertaking by or on behalf of the indemnified party promptly to repay such amount if it shall ultimately be determined by a court of competent jurisdiction (not subject to further appeal) that he or it has not met that standard of conduct.

## 8. OTHER ACTION.

**8.1 General**. Each Member shall execute and deliver such additional documents and instruments, and shall perform such additional acts, as may be necessary or appropriate to carry out the terms of this Agreement and the Plan, as and when requested to do so by the Manager.

**8.2 Cooperation**. If any transaction involving the sale or other disposition of all or substantially all of the equity interests or assets of Holdco or of the Company is proposed by Holdco or by the Holdco Manager (or special committee thereof), or any other transaction that could result in a Sale of Holdco is proposed by either of them or any other Sale of Holdco proposed in accordance with the terms of the Holdco LLC Agreement, each Member shall use its reasonable best efforts to support the transaction (and not take any action inconsistent with the transaction) and take all such action as may be reasonably requested by Holdco or the Holdco Manager (or special committee thereof) to cause the transaction to be consummated at the time and on the terms proposed by Holdco or the Holdco Manager (or special committee thereof), including, to the extent requested: (a) reviewing and commenting on confidential offering memoranda or similar documents; (b) preparing projections; (c) meeting with representatives of prospective purchasers and participating in management meetings; (d) assisting in connection with the negotiation, documentation and consummation of the proposed transaction; and (e) executing and delivering such agreements and documents as are customary for similar transactions. No distribution shall

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be made by the Company to any Member who fails to fully and strictly comply in all respects with the provisions of this Section 8.2.

## 9. DURATION OF COMPANY.

The Company shall continue in existence in perpetuity until the date the Company is dissolved in accordance with Section 10 of this Agreement.

## 10. DISSOLUTION; LIQUIDATION.

**10.1 Dissolution**. The Company shall be dissolved only upon the occurrence of one of the following events:

(a) the election by the Manager to dissolve the Company following a Sale of Holdco or any such other time as the Manager reasonably deems appropriate; or

(b) the liquidation and dissolution of Holdco and the final distribution to the Participant Members of proceeds received by the Company, if any, with respect to the Company's interest in Holdco.

## 11. LIQUIDATION AND DISTRIBUTION OF ASSETS.

Upon dissolution of the Company, the Manager shall proceed to sell or liquidate any assets other than cash (to the extent feasible) within a reasonable time and, after paying or making provision for any liabilities to creditors of the Company, shall distribute the Company's cash and other assets to the Members in accordance with Sections 5.1 and 5.2 of the Plan; provided, however, that any amounts to be returned to the Company in accordance with the Plan and in particular, Article V thereof shall be so returned by the Company to Holdco and none of the Participant Members shall have any entitlement thereto.

## 12. ACCOUNTING AND TAX MATTERS.

**12.1 Fiscal Year**. The Company's fiscal year shall be the calendar year unless changed by the Manager or otherwise required by law.

**12.2 Books of Account, etc.** Complete and accurate books of account shall be kept by the Company at its principal office (or at such other office as the Manager may designate). The determinations of the Manager with respect to the treatment of any item or its allocation for federal, state or local income tax purposes shall be binding upon all Members so long as that determination is legally permissible and not inconsistent with any express provision of this Agreement.

**12.3 Tax Information**. As soon as practicable after the end of each fiscal year, the Manager shall furnish to each Participant Member any information with respect to the Company for such fiscal year as shall enable that Participant Member to prepare any income tax return that he or she is required to file for that year. The Company shall also furnish tax information to the Members on an interim basis to the extent the Manager determines appropriate in the Manager's sole and absolute discretion. The Members shall not have any right to information, except for such information as is required to complete their tax returns. The Manager may, but shall not be required to, furnish such other information as the Manager deems appropriate, in the Manager's sole and absolute discretion. Section 18-305(a) of the Act (entitled "Access to and Confidentiality of Information; Records") shall not apply to or be incorporated into this Agreement for any Participant Member, and each Participant Member hereby expressly waives any and all rights under such section of the Delaware Act.

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**12.4 Capital Accounts**. A Capital Account shall be established and maintained for each Member in accordance with the following provisions:

(a) To each Member's Capital Account, there shall be credited such Member's capital contributions (if any), such Member's distributive share of Net Profits, and any items in the nature of income or gain that are specially allocated pursuant to this Agreement, and the amount of any liabilities of the Company that are assumed by such Member, or that are secured by any assets of the Company distributed to such Member.

(b) To each Member's Capital Account, there shall be debited the amount of cash and the Gross Asset Value of any Company assets distributed to such Member pursuant to any provision of this Agreement, such Member's distributive share of Net Losses, and any items in the nature of expenses or losses that are specially allocated pursuant to this Agreement, and the amount of any liabilities of such Member assumed by the Company or that are secured by any property contributed by such Member to the Company.

(c) If ownership of any membership interest in the Company is assigned in accordance with the terms of this Agreement, the assignee shall succeed to the Capital Account of the assignor to the extent it relates to the assigned membership interest.

(d) In determining the amount of any liability for purposes of Sections 12.4(a) and 12.4(b) above, there shall be taken into account Code Section 752(c) and any other applicable provisions of the Code and Regulations.

(e) To each Member's Capital Account, there shall be debited or credited, as the case may be, such adjustments as are necessary to reflect a revaluation of Company assets to reflect the Gross Asset Value of all Company assets, as required by Regulations Section 1.704-1(b)(2)(iv)(f).

The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Code Section 704 and Regulations Section 1.704-1(b) and shall be interpreted and applied in a manner consistent with such Regulations. The Company shall make any adjustments that are necessary or appropriate to maintain equality between the Capital Accounts of the Members and the amount of Company capital reflected on the Company's balance sheet as computed for book purposes in accordance with Regulations Section 1.704-1(b)(2)(iv)(q).

**12.5 Allocation of Net Income and Net Losses**.

(a) After giving effect to the special allocations set forth in Section 12.6 and subject to the other provisions of this Section 12.5, Net Profits or Net Losses for any fiscal year or other relevant period shall be allocated among the Members in such a manner that, as of the end of such fiscal year or other relevant period, with respect to each Member, the sum of (i) the Capital Account of such Member, (ii) such Member's share of Company Minimum Gain and (iii) such Member's Member Minimum Gain shall, as nearly as possible, be equal to the net amount, positive or negative, that would be distributed to such Member or for which such Member would be liable to the Company under this Agreement and the Plan, determined as if the Company were to, on the last day of the fiscal year or other relevant period, (x) sell all of the assets of the Company for an amount equal to their respective Gross Asset Values, (y) satisfy all debts in accordance with their terms (limited, with respect to each nonrecourse liability, to the Gross Asset Value of the assets securing such liability), and (z) distribute the remaining proceeds of such sale in liquidation pursuant to Sections 5.1 and 5.2 of the Plan, all of the foregoing computed after all actual distributions or Capital Contributions have been made for such fiscal year or other relevant period. All

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outstanding Management LLC Units will be treated as vested in connection with the foregoing hypothetical liquidation.

(b) The Manager shall make such allocations for tax purposes, and any modifications to this Agreement, as may be required to comply with Code Section 704(c) and the Regulations thereunder.

(c) Except as otherwise provided in this Agreement, items of taxable income, gain, loss, deduction, and credit shall be allocated among the Members for income tax purposes in a manner consistent with the allocations made for "book purposes" as provided in this Agreement. Taxable income or loss for any fiscal year that is not allocated pursuant to the preceding sentence and that is not otherwise allocated pursuant to the terms of this Agreement shall be allocated among the Members for tax purposes in the same proportion that Net Profit or Net Loss has been allocated for that fiscal year.

(d) Notwithstanding the other provisions of this Agreement, the Manager is authorized to make any adjustment in the allocation of Net Profit or Net Loss if the Manager considers in good faith that the adjustment is necessary and equitable to address issues not specifically dealt with in this Agreement, to correct errors in allocations caused by errors in unaudited financial information, or to correct inequities that may arise under this Agreement.

(e) No Member shall treat a Company item on its federal, state, or local income tax return in a manner inconsistent with the treatment of the item on the Company's federal, state, or local income tax return.

(f) In its sole and absolute discretion, the Manager may adjust allocations made in connection with a Sale of Holdco so that, on an aggregate basis, the net allocations of Net Profit (in excess of Net Loss) made to each Member for all accounting periods, including the final accounting period following such Sale of Holdco, shall equal, as closely as possible, the total amount of distributions that the Member is likely to receive in excess of that Member's capital contributions.

**12.6 Regulatory Allocations**. Notwithstanding any other provision of this Agreement, the following special allocations shall be made in the following order:

(a) Minimum Gain Chargeback. Notwithstanding any other provision of this Section 12, if there is a net decrease in Company Minimum Gain during any fiscal year or other relevant period, each Member shall be specially allocated items of Company income and gain for such fiscal year or other relevant period (and, if necessary, for subsequent fiscal years or periods) in an amount equal to such Member's share of the net decrease in Company Minimum Gain, as determined under Regulations Section 1.704-2(g). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Sections 1.704-2(f)(6) and 1.704-2(j)(2). This Section 12.6(a) is intended to comply with the "minimum gain chargeback" requirements of Regulations Section 1.704-2(f) and shall be interpreted consistently therewith.

(b) Member Minimum Gain. Notwithstanding any other provision of this Section 12 (except Section 12.6(a), which shall be applied first), if there is a net decrease in Member Minimum Gain attributable to a Member Nonrecourse Debt during any fiscal year or other relevant period, each Member with a share of Member Minimum Gain attributable to a Member Nonrecourse Debt at the beginning of such fiscal year or other relevant period shall be specially allocated items of income and gain for such fiscal year or other relevant period (and, if necessary, for subsequent fiscal years or periods) in an amount equal to such Member's share of the net decrease in Member Minimum Gain attributable to a

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Member Nonrecourse Debt, determined in accordance with Regulations Sections 1.704-2(i)(4) and (5). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Sections 1.704-2(i)(4) and 1.704-2(j)(2)(i). This Section 12.6(b) is intended to comply with the "partner minimum gain chargeback" requirements of Regulations Section 1.704-2(i)(4) and shall be interpreted consistently therewith.

(c) Qualified Income Offset. If any Member unexpectedly receives any adjustment, allocation or distribution described in Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5) or (6) which results in an Adjusted Capital Account Deficit for the Member, such Member shall be allocated items of income and gain in an amount and manner sufficient to eliminate such Adjusted Capital Account Deficit as quickly as possible; provided that, an allocation pursuant to this Section 12.6(c) shall be made if and only to the extent that such Member would have an Adjusted Capital Account Deficit after all other allocations provided for in this Section 12 have been tentatively made as if this Section 12.6(c) were not in this Agreement. This Section 12.6(c) is intended to constitute a "qualified income offset" as provided by Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

(d) Member Nonrecourse Deductions. Any Member Nonrecourse Deductions for any fiscal year or other period shall be allocated to the Members who bear the Economic Risk of Loss with respect to the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable in accordance with Regulations Section 1.704-2(i).

(e) Nonrecourse Deductions. Any Nonrecourse Deductions (as defined in Regulations Section 1.704-2(b)(1)) for any fiscal year or other period shall be specially allocated to the Members in the same manner that Net Profits and Net Losses are allocated under Section 12.5 for the applicable fiscal year.

(f) Regulatory Allocations. The allocations set forth in this Section 12.6 (the "Regulatory Allocations") are intended to comply with certain requirements of the applicable Regulations promulgated under Code Section 704(b). Notwithstanding any other provision of this Agreement, the Regulatory Allocations shall be taken into account in allocating Net Profits, Net Losses and other items of income, gain, loss and deduction to the Members for Capital Account purposes so that, to the extent possible, the net amount of such allocations of Net Profits, Net Losses and other items shall be equal to the amount that would have been allocated to each Member if the Regulatory Allocations had not occurred.

**12.7 Section 754 Election**. The Manager may, in the Manager's sole and absolute discretion, cause the election provided for in Code Section 754 to be made.

**12.8 Partnership Audit Rules**.

(a) The Company will, with respect to any "final partnership adjustment" (as such term is defined for purposes of Code Section 6226(a) or any successor provision), make the election provided for in Code Section 6226(a) or any successor provision, unless otherwise decided by the Holdco Manager, in its sole and absolute discretion. The Company's Partnership Representative for purposes of the Partnership Audit Rules will be the Manager or such other Member or eligible third party as the Holdco Manager may designate in writing. If a Member or other third party serves as the Partnership Representative, such Member or other third party shall at times be subject to the direction of the Holdco Manager. The Holdco Manager is authorized to change the Company's Partnership Representative by designating a new Partnership Representative in writing to the extent permitted under the Regulations that implement the Partnership Audit Rules (the "Designated Individual," and together with the Partnership Representative, the "Tax Representative"). With respect to any period in which any non-individual is the

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Partnership Representative, the Holdco Manager shall cause the Company to appoint an individual eligible to be a "designated individual" under the Partnership Audit Rules through whom the Partnership Representative will act for all purposes of the Partnership Audit Rules.

(b) By executing this Agreement, each Member (i) expressly authorizes the Tax Representative and the Company to take any and all action that is reasonably necessary under applicable federal income tax law (as such law may be revised from time to time) to cause the Company to make the election set forth in Code Section 6226(a) if the Tax Representative decides to make such election, and (ii) expressly agrees to take any action, and furnish the Tax Representative with any information necessary, to give effect to such election. No Member shall file a notice with the Internal Revenue Service under Code Section 6222(c)(1)(B) in connection with such Member's intention to treat an item on such Member's U.S. federal income tax return in a manner that is inconsistent with the treatment of such item on the Company's U.S. federal income tax return.

(c) Promptly following the written request of the Tax Representative, the Company shall, to the fullest extent permitted by law, reimburse and indemnify the Tax Representative for all reasonable, documented, out-of-pocket expenses, including reasonable legal and accounting fees, claims, liabilities, losses and damages incurred by the Tax Representative (in its capacity as such) in connection with any administration or judicial proceedings (i) with respect to the tax liability of the Company; and/or (ii) with respect to the tax liability of the Members in connection with the operations of the Company.

(d) Each Member shall indemnify and hold harmless the Company, the Managers and the Tax Representative for such Member's respective portion of the financial burden of any "imputed underpayment" (as determined under Code Section 6225) and associated interest, adjustments to tax and penalties arising from an entity-level adjustment that are imposed on the Company in accordance with the terms of Section 5.4 of the Plan.

(e) The provisions of this Section 12.8 shall survive the termination of the Company or the termination of any membership interests and shall remain binding on the Members for as long a period of time as is necessary to resolve with the Internal Revenue Service any and all matters regarding the U.S. federal income taxation of the Company or the Members (relating to the operations of the Company).

## 13. DEFINITIONS.

Capitalized terms used in this Agreement without definition shall have the meanings set forth below. The singular includes the plural, and the masculine gender includes the feminine and neuter genders, and vice versa, as the context requires.

"Act" has the meaning set forth in the preamble to this Agreement.

"Adjusted Capital Account Deficit" means, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant fiscal year or other relevant period, after giving effect to the following adjustments:

(a) credit to such Capital Account any amounts which such Member is obligated to restore pursuant to any provision of this Agreement or is deemed to be obligated to restore pursuant to the next to the last sentences of Regulations Sections 1.704-2(g)(1) and 1.704-2(i)(5) after taking into account any changes during such year in Company Minimum Gain and Member Minimum Gain; and

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(b) debit to such Capital Account the items described in Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5) and (6).

The foregoing definition of Adjusted Capital Account Deficit is intended to comply with the provisions of Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

"Affiliate" means, with respect to any Person, any other Person that Controls, is Controlled by, or is under common Control with such Person; and the term "Affiliated" has a meaning correlative to the foregoing. No Holdco Member shall be deemed to be an Affiliate of another Holdco Member solely due to a Holdco Member's membership interest in Holdco or by virtue of the Holdco LLC Agreement.

"Agreement" has the meaning set forth in the preamble to this Agreement.

"Capital Account" means, with respect to any Member, the capital account that the Company establishes and maintains for such Member pursuant to Section 12.4 of this Agreement.

"Certificate" has the meaning set forth in the recitals to this Agreement.

"Code" means the Internal Revenue Code of 1986, as amended.

"Company" has the meaning set forth in the preamble to this Agreement.

"Company Minimum Gain" has the meaning ascribed to the term "partnership minimum gain" in the Regulation Sections 1.704-2(b)(2) and 1.704-2(d).

"Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ownership of voting securities, by contract or otherwise, and the terms "Controlling" and "Controlled" shall have meanings correlative thereto.

"Depreciation" means an amount equal to the depreciation, amortization or other cost recovery deduction allowable with respect to an asset for the fiscal year or other period, except that if the Gross Asset Value of an asset differs from its adjusted tax basis at the beginning of the fiscal year or other period, Depreciation will be an amount which bears the same ratio to the beginning Gross Asset Value as the federal income tax depreciation, amortization or other cost recovery deduction for the fiscal year or other period bears to the beginning adjusted tax basis; provided, however, that if the federal income tax depreciation, amortization or other cost recovery deduction for the fiscal year or other period is zero, Depreciation will be determined by reference to the beginning Gross Asset Value using any reasonable method selected by the Holdco Manager.

"Designated Individual" means the Person designated as set forth in Section **Error! Reference source not found.**.

"Distribution Threshold" has the meaning set forth in the Plan.

"Economic Risk of Loss" shall have the meaning specified in Regulations Section 1.752-2.

"Effective Date" has the meaning set forth in the preamble to this Agreement.

"Gross Asset Value" means, with respect to any asset of the Company, the asset's adjusted basis for federal income tax purposes, except as follows:

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(a) The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the gross fair market value of such asset, as determined by the Manager, in the Manager's sole and absolute discretion.

(b) The Gross Asset Values of all Company assets, including goodwill, going concern value, and similar intangible assets, shall be adjusted to equal their respective gross fair market values in connection with (and to be effective immediately prior to) the following events: (i) the acquisition of an additional membership interest in the Company by any new or existing Member in exchange for more than a *de minimis* capital contribution; (ii) the distribution by the Company to a Member of more than a *de minimis* amount of property (including cash) as consideration for an interest in the Company; (iii) the grant of an interest in the Company (other than a *de minimis* interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in the capacity of a Member or by a new Member acting in the capacity of a Member or in anticipation of being a Member; or (iv) the liquidation of the Company within the meaning of Regulations Section 1.704-1(b)(2)(ii)(g); *provided, however*, that an adjustment pursuant to clauses (i), (ii) or (iii) above shall be made only if such adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company.

(c) The Gross Asset Value of any Company asset distributed to any Member shall be the gross fair market value of such asset on the date of distribution.

(d) The Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustments to the adjusted bases of such assets pursuant to Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Regulations Section 1.704-1(b)(2)(iv)(m) and the provisions with respect to Regulatory Allocations hereof; provided, however, that Gross Asset Values shall not be adjusted pursuant to this paragraph to the extent they were adjusted pursuant to paragraph (b) above in connection with a transaction that otherwise would result in an adjustment pursuant to this paragraph.

(e) To the extent an adjustment to the adjusted tax basis of any asset pursuant to Code Section 734(b) or Code Section 743(b) is required pursuant to Regulations Section 1.704-1(b)(2)(iv)(m)(4) to be taken into account in determining Capital Accounts as a result of a distribution other than in liquidation of a Member's interest in the Company, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis of the asset) from the disposition of the asset and shall be taken into account for purposes of computing Net Profits and Net Losses.

(f) If the Gross Asset Value of an asset has been determined or adjusted pursuant to this Section, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Net Profits and Net Losses.

"Holdco" has the meaning set forth in the preamble to this Agreement.

"Holdco Group" has the meaning set forth in the Plan.

"Holdco LLC Agreement" has the meaning set forth in the recitals to this Agreement.

"Holdco Manager" means the manager of Holdco.

"Management LLC Units" has the meaning set forth in the Plan.

"Manager" has the meaning set forth in Section 3.1.

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"Member Minimum Gain" has the meaning ascribed to the term "partner nonrecourse debt minimum gain" in Regulations Section 1.704-2(i)(2).

"Member Nonrecourse Debt" has the meaning ascribed to the term "partner nonrecourse debt" in Regulations Section 1.704-2(b)(4).

"Member Nonrecourse Deductions" means items of Company loss, deduction, or Code Section 705(a)(2)(b) expenditures that are attributable to Member Nonrecourse Debt within the meaning of Regulations Section 1.704-2(i).

"Members" has the meaning set forth in the preamble to this Agreement.

"Net Profits" and "Net Losses" means, for any fiscal year or period, an amount equal to the Company's taxable income or loss for such year or period, determined in accordance with Code Section 703(a) (for this purpose, all items of income, gain, loss or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or loss), with the following adjustments:

(a) Any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Net Profits or Net Losses shall be added to such taxable income or loss;

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B) or treated as Code Section 705(a)(2)(B) expenditures pursuant to Regulations Section 1.704-1(b)(2)(iv)(i) and not otherwise taken into account in computing Net Profits or Net Losses shall be subtracted from Net Profits or Net Losses;

(c) Gains or losses resulting from any disposition of Company asset with respect to which gains or losses are recognized for federal income tax purposes shall be computed with reference to the Gross Asset Value of the Company asset disposed of, notwithstanding the fact that the adjusted tax basis of such Company asset differs from its Gross Asset Value;

(d) In lieu of the depreciation, amortization and other cost recovery deductions taken into account in computing the taxable income or loss, there will be taken into account Depreciation;

(e) If the Gross Asset Value of any Company asset is adjusted pursuant to the definition of "Gross Asset Value," the amount of the adjustment will be taken into account as gain or loss from the disposition of the asset for purposes of computing Net Profits or Net Losses; and

(f) Notwithstanding any other provision of this subsection, any items of income, gain, loss or deduction that are specially allocated shall not be taken into account in computing Net Profits or Net Losses.

"Partnership Audit Rules" means the provisions of Subchapter C of Chapter 63 of the Code, as revised by Section 1101 of the Bipartisan Budget Act of 2015, as such provisions may thereafter be amended and including Regulations or other guidance issued thereunder.

"Participant Members" has the meaning set forth in the preamble to this Agreement.

"Partnership Representative" has the meaning provided to such term in the Partnership Audit Rules.

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"Person" means a natural person, partnership (whether general or limited), limited liability company, trust, estate, association, corporation, custodian, nominee or any other individual or entity in its own or any representative capacity.

"Plan" has the meaning set forth in the recitals to this Agreement.

"Regulations" mean, unless the context clearly indicates otherwise, the regulations in force as final or temporary that have been issued by the U.S. Department of Treasury pursuant to its authority under the Code, and any successor regulations.

"Regulatory Allocations" has the meaning set forth in Section 12.6(f).

"Sale of Holdco" has the meaning set forth in the Plan.

"Separate Agreement" has the meaning set forth in the Plan.

"Service Provider" has the meaning set forth in the Plan.

"Subsidiary" means, with respect to any specified Person (the "parent") at any date, (a) any other corporation, limited liability company, association or other business entity of which, (i) securities or other ownership interests representing more than 50% of the voting power thereof or (ii) the majority interest in the capital or profits of such corporation, limited liability company, association or other business entity, are owned, controlled or held by the parent and/or one or more Subsidiaries of the parent and (b) any other Person that is otherwise Controlled by the parent and/or one or more Subsidiaries of the parent.

"Tax Representative" has the meaning set forth in Section 12.8(a).

"Transfer" has the meaning set forth in Section 6.

"Vested Management LLC Unit" has the meaning set forth in the Plan.

## 14. MISCELLANEOUS.

**14.1 Entire Agreement; Amendment**. This Agreement (together with the Plan and each Participant Member's Separate Agreement (as to that Participant Member)) and the Holdco LLC Agreement contain a complete statement of the arrangements among the Members with respect to the Company and supersedes all prior agreements and understandings among them with respect to the Company. This Agreement may be amended, modified or supplemented or any provision herein may be waived, in each case, by the Manager, in its sole and absolute discretion, at any time and from time to time, and in any manner (including, without limitation, to change the number of Management LLC Units that may be issued by the Company or to resign and/or appoint a successor Manager); provided, however, that no amendment, modification, supplement or waiver that materially and adversely affects a Participant Member (other than any amendment, modification, supplement or waiver that affects all Participant Members in a proportional manner or that are made to reflect changes in the capital structure of Holdco or are made in connection with any merger, consolidation or other business combination) may be made without the written approval of the Participant Member who would be disproportionately affected thereby; provided, further, however, notwithstanding the foregoing, the Manager may change the aggregate number of Management LLC Units even if such change would dilute then existing Participant Members. All amendments, modifications, supplements or waivers to this Agreement approved pursuant to this Section 14.1 shall be binding upon all Participant Members (whether or not such Participant Member consented to such amendment, modification, supplement or waiver). Notwithstanding anything in this Agreement to the contrary, the Company, Holdco

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and any other member of the Holdco Group (as applicable), shall have general authority to enter into one or more Separate Agreements with a Participant Member and neither the Company nor Holdco nor any of Holdco's Subsidiaries or Affiliates (as applicable) shall be prohibited or precluded by this Agreement from entering into any such Separate Agreement on terms that deviate from the terms of this Agreement.

**14.2 Notices**. Any notice or other communication under this Agreement, the Plan or any Separate Agreement (unless otherwise expressly specified therein) shall be in writing and shall be considered given when delivered in person or sent by facsimile or email (with evidence confirming receipt), one (1) business day after being sent by a major overnight courier or five (5) days after being mailed by registered mail, return receipt requested. Notices to any Member shall be addressed to such Member at the address maintained for the Member on the books and records of the Company. Any Member may, by notice to the Company, specify any other address for the receipt of all notices.

**14.3 Governing Law**. This Agreement shall be governed by and construed in accordance with the law of the State of Delaware applicable to agreements made and to be performed in Delaware, without reference to the choice of law provisions thereof.

**14.4 Waiver of Trial by Jury**. EACH PARTY ACKNOWLEDGES AND AGREES THAT ANY CONTROVERSY THAT MAY ARISE UNDER THIS AGREEMENT OR ANY AGREEMENT EXECUTED PURSUANT TO OR IN CONNECTION WITH THIS AGREEMENT IS LIKELY TO INVOLVE COMPLICATED AND DIFFICULT ISSUES, AND THEREFORE IT HEREBY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LITIGATION DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY AGREEMENT EXECUTED PURSUANT TO OR IN CONNECTION WITH THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY. EACH PARTY CERTIFIES AND ACKNOWLEDGES THAT (I) NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER, (II) IT UNDERSTANDS AND HAS CONSIDERED THE IMPLICATIONS OF SUCH WAIVER, (III) IT MAKES SUCH WAIVER VOLUNTARILY, AND (IV) IT HAS BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION 14.4.

**14.5 Severability**. If any term or provision of this Agreement or any application of this Agreement shall be declared or held invalid, illegal, or unenforceable, in whole or in part, whether generally or in any particular jurisdiction, such provision shall be deemed amended to the extent, but only to the extent, necessary to cure such invalidity, illegality, or unenforceability, and the validity, legality, and enforceability of the remaining provisions, both generally and in every other jurisdiction, shall not in any way be affected or impaired thereby.

**14.6 Headings**. The headings in this Agreement are solely for the convenience of reference and shall not affect its interpretation.

**14.7 Counterparts**. This Agreement may be executed in separate counterpart copies, but such counterparts taken together shall constitute one and the same instrument.

*[Remainder of Page Intentionally Left Blank]*

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**IN WITNESS WHEREOF**, the undersigned has executed this Agreement as of the day and year first above written.

**Parakeet Holdco II, LLC**

DocuSigned by:

By: Bryan Laplant
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Name: Bryan Laplant

Title: CCO & Managing Director, Legal

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# EXHIBIT A

Parakeet HoldCo II MIP, LLC Equity Incentive Plan

[*See attached*]

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[EXECUTION FORM]

**PARAKEET HOLDCO II MIP, LLC**

**EQUITY INCENTIVE PLAN**

## ARTICLE I
## ESTABLISHMENT AND PURPOSE

**1.1** *Establishment*. Parakeet Holdco II MIP, LLC Equity Incentive Plan (as may be amended, supplemented, restated or otherwise modified from time to time, this "Plan"), as herein set forth and as may be amended from time to time, is effective as of October 11, 2024 (the "Effective Date"). Certain defined terms used in this Plan are set forth in Article II of this Plan.

**1.2** *Purpose*. The purpose of this Plan is to provide selected Service Providers with an incentive to participate in the success and growth of the Holdco Group through an award of Management LLC Units that, subject to the terms and conditions of this Plan, will entitle them to receive a portion of the distributions to the Holdco Members pursuant to the Holdco LLC Agreement.

## ARTICLE II
## DEFINITIONS

**2.1** *Definitions*. As used in this Plan, the following terms have the meanings stated in this Article II. The singular includes the plural, and the masculine gender includes the feminine and neuter genders, and vice versa, as the context requires. Capitalized terms used but not defined herein shall have the meanings set forth in the Limited Liability Company Agreement of Parakeet Holdco II MIP, LLC, dated as of October 11, 2024 (as the same may be amended, supplemented, restated or otherwise modified from time to time, the "MIP LLC Agreement"), and to which this Plan is attached and forms a part.

"Active Employee" means, as of the relevant date, a Participant who is actively employed by Holdco or any other member of the Holdco Group.

"Affiliate" means, with respect to any Person, any other Person that Controls, is Controlled by, or is under common Control with, such Person; and the term "Affiliated" has a meaning correlative to the foregoing. No Holdco Member shall be deemed to be an Affiliate of another Holdco Member solely due to a Holdco Member's membership interest in Holdco or by virtue of the Holdco LLC Agreement.

"Appraiser" means an independent, third-party investment banking firm with no less than five years' experience in valuing businesses similar to the businesses of Holdco and its Subsidiaries.

"Asset Management Agreement" means the Asset Management Agreement, dated as of October 11, 2024, between the Asset Manager and Holdco, as amended, supplemented, restated or otherwise modified from time to time.

"Asset Manager" means Parakeet MHC, LLC, a Delaware limited liability company (together with any of its subsidiaries providing services pursuant to the Asset Management Agreement, including without limitation Parakeet Communities, LLC).

"Asset Manager Participant" means, as of the date of determination, each Participant that is a Parakeet Service Provider or a JREF Entity.

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"Award" means an issuance of a Management LLC Unit under (and subject to) the terms and conditions of the MIP LLC Agreement (including this Plan) and the applicable Award Agreement.

"Award Agreement" means the award agreement between the Company and a Participant evidencing Management LLC Units issued to such Participant under this Plan.

"Business" means the business of, directly or indirectly, acquiring, re-developing, developing, owning, operating and monetizing (i) manufactured housing communities across the United States, and (ii) real estate opportunities adjacent to manufactured housing communities, including RV parks, marinas, and campgrounds.

"Cause" with respect to (i) the Asset Manager, shall have the meaning set forth in the Asset Management Agreement as is in effect on the date of the Asset Manager's termination of service, and in the absence of such definition in the Asset Management Agreement, shall mean, (a) due to the gross negligence or willful misconduct of the Asset Manager, the failure of the Asset Manager in any material respect to keep, observe or perform any obligation of the Asset Manager under the Asset Management Agreement; or (b) the failure of the Asset Manager in any material respect to keep, observe or perform any obligation of the Asset Manager under the Asset Management Agreement, which such failure is not cured within ten (10) days after written notice thereof by Holdco to the Asset Manager; or (ii) with respect to a particular Participant, shall have the meaning set forth in such Participant's Separate Agreement as is in effect on the date of such Participant's termination of employment or service, and in the absence of such Separate Agreement or definition in such Separate Agreement, shall mean, as determined in the sole discretion and business judgment of the Participant's employer: (a) the Participant's commission of, indictment for, conviction of, or plea of nolo contendere to, a felony or any other crime (whether or not a felony), fraud, theft, breach of trust or other similar acts, either in connection with the performance of the Participant's duties or otherwise whether or not it adversely affects the business activities, reputation, goodwill or image of any Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates; (b) the Participant's being or having been engaged in conduct constituting breach of fiduciary duty, negligence, insubordination, misconduct, or malfeasance, of any kind relating to Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates or the performance of the Participant's duties; (c) the Participant's failure to (1) follow a lawful directive of Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates at which the Participant is employed or (2) comply with any written rules, regulations, policies or procedures of Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates at which the Participant is employed as in effect from time to time; (d) the Participant's breach of any agreement with Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates or any applicable non-competition, non-solicitation, non-disparagement, or confidentiality covenant; (e) the Participant's (1) failure to perform at a level of effort or results commensurate with the Participant's responsibilities or (2) failure to perform assigned duties to the satisfaction of the Participant's employer, other than due to disability or (3) failure to act in the best interest of Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates; (f) the Participant's repeatedly (*i.e.*, on more than one occasion) being under the influence of drugs or alcohol (other than over-the-counter or prescription medicine or other medically-related drugs to the extent they are taken in accordance with their directions or under the supervision of a physician) which interferes with the performance of the Participant's duties to Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates, or, while under the influence of such drugs or alcohol, engaging in inappropriate conduct during the performance of the Participant's duties to Holdco or any other member of the Holdco Group, the Asset Manager or any of their respective Affiliates; or (g) the Participant's engaging in any unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature; provided, however, that, notwithstanding anything contained in this

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Agreement to the contrary, if the Asset Manager's service with Holdco or any other member of the Holdco Group is terminated for Cause, then for purposes of this Plan, each Asset Manager Participant's indirect service with Holdco or any other member of the Holdco Group will automatically, without further notice, action or deed, be deemed to have been terminated for Cause.

"Code" means the Internal Revenue Code of 1986, as amended.

"Company" means Parakeet Holdco II MIP, LLC, a Delaware limited liability company.

"Confidential Information" has the meaning set forth in Section 7.1(a).

"Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ownership of voting securities, by contract or otherwise, and the terms "Controlling" and "Controlled" shall have meanings correlative thereto.

"Distribution Threshold" means, with respect to each Management LLC Unit, the amount initially specified as the distribution threshold for such Management LLC Unit, as such amount may subsequently be adjusted or reset in accordance with this Plan, the Holdco LLC Agreement or any Award Agreement.

"Distribution Threshold Adjustment" means each adjustment made to, or the reset of, the Distribution Threshold applicable to any Management LLC Units, on a case-by-case basis, pursuant to Section 4.3.

"Effective Date" has the meaning set forth in Section 1.1.

"Fair Market Value" means, as of the date of determination, the purchase price that a willing buyer and willing seller, with neither acting under compulsion, would agree upon for the purchase and sale of all of the assets of Holdco and its Subsidiaries, in an arms-length transaction, taking into account all relevant factors determinative of the value of Holdco and its Subsidiaries.

"Good Reason" (and any similar phrase), (a) with respect to a particular Participant, shall have the meaning set forth in the Participant's Separate Agreement as in effect on the date of the Participant's termination of employment or service, and in the absence of such Separate Agreement or of such definition in such Separate Agreement, shall mean: (i) a material reduction in the Participant's compensation or benefits, unless in connection with reductions affecting one or more of the Participant's co-workers; or (ii) the failure by Holdco or any other member of the Holdco Group or the Asset Manager, as applicable, to pay when due any amount payable to the Participant under any Separate Agreement or under any plan, program, agreement, arrangement or other commitment by Holdco or any other member of the Holdco Group or the Asset Manager, as applicable; provided, that "Good Reason" shall not be deemed to exist unless (i) the Participant has given written notice to any member of the Holdco Group or the Asset Manager, as applicable, specifying in reasonable detail the acts or omissions thereof that the Participant alleges constitutes "Good Reason" within thirty (30) days of the date the Participant first knows of the initial occurrence of such acts or omissions, and (ii) any member of the Holdco Group or the Asset Manager, as applicable, shall have failed to rescind any such act or cure any such omission within fifteen (15) days after delivery of the notice and the Participant terminates his or her employment within thirty (30) days after the expiration of such fifteen (15) day period; and (b) with respect to the Asset Manager, shall have the meaning set forth in the Asset Management Agreement as is in effect on the date of the Asset Manager's termination of service, and in the absence of such definition in the Asset Management Agreement, shall mean, the determination by a court of competent jurisdiction that Holdco has materially breached any provision of the Asset Management Agreement and such breach continues

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uncured (as determined by the Asset Manager acting reasonably and in good faith) for a period of sixty (60) days after written notice thereof by the Asset Manager to Holdco. Notwithstanding anything contained in this Agreement to the contrary, except as otherwise expressly set forth in this Plan, including Section 6.2 and Section 6.3, if the Asset Manager terminates its service with Holdco or any other member of the Holdco Group with Good Reason, then for purposes of this Plan, each Asset Manager Participant's indirect service with Holdco or any other member of the Holdco Group will automatically, without further notice, action or deed, be deemed to have been terminated by such Participant with Good Reason.

"Holdco" means Parakeet HoldCo II, LLC, a Delaware limited liability company.

"Holdco Capital Contribution" has the same meaning as the term "Capital Contribution" in the Holdco LLC Agreement.

"Holdco Class P Unit" has the same meaning as the term "Class P Unit" in the Holdco LLC Agreement.

"Holdco Distribution" means any distribution to be made by Holdco to the Holdco Members under Section 5.02(a)(iii), (a)(iv), (a)(v) or (a)(vi) of the Holdco LLC Agreement. Any consideration payable in connection with a Sale of Holdco among the Holdco Members indirectly under Section 5.02(a)(iii), (a)(iv), (a)(v) or (a)(vi) pursuant to Section 5.03 of the Holdco LLC Agreement shall be deemed a Holdco Distribution made by Holdco to the Company.

"Holdco Group" means Holdco and its Subsidiaries as in existence from time to time.

"Holdco LLC Agreement" means the Limited Liability Company Agreement of Holdco, entered into as of October 11, 2024 (as the same may be amended, supplemented, restated or otherwise modified from time to time).

"Holdco Manager" has the meaning of the term "Manager" in the Holdco LLC Agreement.

"Holdco Member" has the meaning of the term "Member" in the Holdco LLC Agreement.

"Holdco Unit" means the membership interests of Holdco designated as "Units" pursuant to the Holdco LLC Agreement.

"Initial Public Offering" means the first underwritten public offering and sale of equity securities of Holdco (or its successor) pursuant to an effective Registration Statement; provided that an "Initial Public Offering" will not include an offering made on Form S-4 or Form S-8 (or any successor form) in connection with a business acquisition or combination or an employee benefit plan, respectively.

"IPO Stock" has the meaning set forth in Section 5.3.

"JREF Entity" means each of Jadian Real Estate Fund I-B, LP, a Delaware limited partnership, and Jadian Parakeet Aggregator LP, a Delaware limited partnership.

"Issuer" has the meaning set forth in Section 5.3.

"Management LLC Units" has the meaning set forth in Section 3.2.

"Manager" has the meaning ascribed to that term in the MIP LLC Agreement.

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"Other Participant" means, as of the date of determination, each Participant other than the JREF Entities.

"Parakeet Service Provider" means, as of the date of determination, each employee or other service provider of the Asset Manager other than a JREF Entity.

"Participant" means any Service Provider who is selected by the Manager to receive an Award pursuant to this Plan, executes an Award Agreement pursuant to Section 4.2 of this Plan and joins the MIP LLC Agreement as a Participant Member thereunder.

"Participant Member" means a Person who is admitted as Participant Member of the Company in accordance with Section 3.2 of this Plan.

"Person" means a natural person, partnership (whether general or limited), limited liability company, trust, estate, association, corporation, custodian, nominee or any other individual or entity in its own or any representative capacity.

"Plan" has the meaning set forth in Section 1.1.

"Plan Distribution" means, with respect to each Holdco Distribution, each distribution made to the Company by Holdco in connection therewith either directly pursuant to Section 5.02(a)(iii), (a)(iv), (a)(v) or (a)(vi) of the Holdco LLC Agreement or indirectly pursuant to Section 5.03 of the Holdco LLC Agreement.

"Plan Distribution Amount" means, with respect to each Plan Distribution, the amount (if any) to be distributed to the Company by Holdco either directly pursuant to Section 5.02(a)(iii), (a)(iv), (a)(v) or (a)(vi) of the Holdco LLC Agreement or indirectly pursuant to Section 5.03 of the Holdco LLC Agreement.

"Registration Statement" is a registration statement filed with the Securities and Exchange Commission in compliance with the Securities Act other than Form A-1 or any successor form under regulations promulgated under the Securities Act.

"Release" has the meaning set forth in Section 5.5.

"Repurchase Option" has the meaning set forth in Section 6.3(a).

"Restricted Period" means, with respect to each Participant, the period commencing on the date on which Management LLC Units are initially issued to the Participant and ending on the first anniversary of the latest of (1) the date of consummation of a Sale of Holdco, (2) the date of termination of the Participant's employment or other direct or indirect service with Holdco or the applicable member(s) of the Holdco Group, or (3) the date on which the Participant ceases to own any Management LLC Units or Securities.

"Restricted Stock" has the meaning set forth in Section 5.3.

"Restrictive Covenants" has the meaning set forth in Section 7.1.

"Sale of Holdco" has the meaning of the term "Sale of the Company" in the Holdco LLC Agreement

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"Section 409A" has the meaning set forth in Section 8.5.

"Securities" has the meaning ascribed to such term in the Holdco LLC Agreement.

"Securities Act" means the Securities Act of 1933, as amended.

"Separate Agreement" means, with respect to a Participant, the Award Agreement, or any separate written employment or other written agreement between the Company, Holdco or any other member of the Holdco Group or the Asset Manager (as applicable), on the one hand, and such Participant, on the other hand.

"Service Provider" means an executive, key employee, consultant, independent contractor, board member, advisory board member or other direct or indirect service provider of any member of the Holdco Group.

"Subject Units" has the meaning set forth in Section 6.3(a).

"Subsidiary" means, with respect to any specified Person (the "parent") at any date, (a) any other corporation, limited liability company, association or other business entity of which, (i) securities or other ownership interests representing more than fifty percent (50%) of the voting power thereof or (ii) the majority interest in the capital or profits of such corporation, limited liability company, association or other business entity, are owned, Controlled or held by the parent and/or one or more subsidiaries of the parent and (b) any other Person that is otherwise Controlled by the parent and/or one or more subsidiaries of the parent.

"Tax Distribution Amount" has the meaning set forth in the Holdco LLC Agreement.

"Transfer" has the meaning set forth in Section 8.2.

"Unit Pool" has the meaning set forth in Section 4.1.

"Unvested Management LLC Unit" means each Management LLC Unit held by a Participant that has not vested in accordance with this Plan or such Participant's Award Agreement.

"Vested Management LLC Unit" means each Management LLC Unit held by a Participant that has vested in accordance with this Plan or such Participant's Award Agreement.

## ARTICLE III
## ADMINISTRATION; ADMISSION OF MEMBERS

**3.1** *Administration*. This Plan shall be administered by the Manager. In exercising its rights and duties hereunder, the Manager will act through the Holdco Manager or any duly authorized officer or officers thereof. The Manager shall have the authority to: (a) adopt, alter and repeal such administrative rules, guidelines and practices governing this Plan as it shall, from time to time, deem advisable; (b) interpret the terms and provisions of this Plan and any Management LLC Units issued under this Plan (and any Award Agreements and other agreements relating thereto); (c) terminate, suspend, amend, waive or modify this Plan; (d) select Participants and grant Awards under this Plan; and (e) perform all calculations under this Plan and to otherwise supervise the administration of this Plan. All decisions made by the Manager pursuant to the provisions of this Plan shall be final and binding on all persons, including the Holdco Group and Participants.

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**3.2** *Admission of Management Members*. The Manager from time to time may issue to Service Providers membership interests in the Company designated as "Management LLC Units" in accordance with and subject to the terms of this Plan. The Management LLC Units are non-voting. Upon acceptance of an Award, a Participant shall, automatically and without further action on his, her or its part, be deemed to be a party to, signatory of and bound by the MIP LLC Agreement as a Participant Member.

## ARTICLE IV
## AWARDS

**4.1** *Awards Subject to Plan*. The total number of Management LLC Units authorized for issuance by the Company under the Plan at any time (the "Unit Pool") shall be such number as is set by the Holdco Manager from time to time. Any Management LLC Units that are forfeited or terminated without the distribution of any amounts hereunder in respect thereto shall again be available for issuance by the Company. Any change in the number of issued Management LLC Units or the number of Management LLC Units comprising the Unit Pool may result in a proportionate increase or reduction in each Participant's share of amounts distributable to the Company by Holdco. The Management LLC Units are subject to dilution and are not subject to anti-dilution protection.

**4.2** *Individual Awards*. Without limiting the authority of the Manager contained in Article III, the Manager may from time to time select those Service Providers who will receive Awards, determine the number and the other conditions and distribution limitations (including vesting, forfeiture and otherwise) of the Management LLC Units to be issued to each such Service Provider and determine the Distribution Threshold for each Management LLC Unit on the date of issuance of such Management LLC Unit consistent with this Plan. To accept such Award, a Participant shall be required to execute an Award Agreement. The Manager may impose such other non-economic terms and conditions on the issuance of any Award as the Manager deems appropriate (including restrictive covenants); provided that any such terms and conditions shall be expressly set forth in the applicable Award Agreement.

**4.3** *Profits Interest and Distribution Threshold.* The Manager, in connection with each grant of any Management LLC Units, shall establish an initial "Distribution Threshold" for such Management LLC Units as set forth in the applicable Award Agreement. The Distribution Threshold applicable to any Management LLC Units shall be adjusted, in the reasonable discretion of the Manager, to the extent necessary in connection with any additional Holdco Capital Contribution made to Holdco or other events to cause each Management LLC Unit to maintain classification as a "profits interest" in the Company within the meaning of Revenue Procedure 93-27, 1993-2 C.B. 343, as clarified by Revenue Procedure 2001-43, 2001-2 C.B. 191. The Company and each Participant agree that it is the intention of the Participants that allocations and distributions to each holder of Management LLC Units be limited to the extent necessary so that each Management LLC Unit qualifies as a profits interest and this Agreement should be interpreted consistently therewith. Without limiting the generality of the foregoing, the Distribution Threshold applicable to a Management LLC Unit shall be adjusted or reset, as applicable, following the grant of such Management LLC Unit as follows: (i) in the event of any redemption or repurchase of Holdco Units by Holdco, the Distribution Threshold of each Management LLC Unit outstanding at the time of such redemption or repurchase shall be reduced (but not below zero) by the amount paid by Holdco to redeem or repurchase such Holdco Units; and (ii) in the event of any Holdco Capital Contribution with respect to any Holdco Units, the Distribution Threshold of each Management LLC Unit outstanding at the time of such Holdco Capital Contribution shall be increased by the amount of such Holdco Capital Contribution.

**4.4** *Tax Treatment*. For the avoidance of doubt, each Participant shall be treated for tax purposes as a partner in a partnership, the Company, with respect to his, her or its Management LLC

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Units starting on the date of grant of such Participant's Management LLC Unit(s). All payments to the Participant in respect of his, her or its Management LLC Unit(s) shall be treated as payments in respect of a partnership interest.

## ARTICLE V
## PAYMENT

**5.1** *Amounts Distributable in Respect of Management LLC Units.*

(a) Each time Holdco makes a Holdco Distribution, Holdco shall make a Plan Distribution in the Plan Distribution Amount for further distribution to the Participants as set forth herein. The Plan Distribution Amount applicable to each Plan Distribution will be distributed by the Company to the Participants in respect of their Vested Management LLC Units in accordance with this Article V. A Plan Distribution generally represents the aggregate amount of each Participant's proportionate share (in respect of such Participant's Vested Management LLC Units and allocated in accordance with Section 5.1(b)) of such available profits distributable to the Company by Holdco in respect of its Holdco Class P Units, and further available for distribution to such Participant by the Company in respect of his, her or its Vested Management LLC Units in accordance with Section 5.1(b), taking into account the Distribution Threshold applicable to such Vested Management LLC Units. In furtherance of and without limiting the authority of the Manager under Section 3.1, the Manager shall have the power, in its sole and absolute discretion, to make such adjustments to this Plan as it deems necessary, advisable or convenient, including, without limitation, in order to provide for the making of any distributions hereunder in the form of securities, property or other non-cash consideration received in a Sale of Holdco.

(b) Promptly following the Company's receipt of all or any portion of a Plan Distribution from Holdco (either directly or pursuant to Section 5.03 of the Holdco LLC Agreement), or upon such later date or dates or events as provided in this Article V or in a Participant's Award Agreement (and subject to the satisfaction of any additional terms or conditions specified in this Article V or such Award Agreement), the Company shall distribute: (i) fifty percent (50%) of the Plan Distribution Amount to the JREF Entities holding Vested Management LLC Units *pro rata* in proportion to the number of Vested Management LLC Units (if any) held by such JREF Entities and (ii) fifty percent (50%) of the Plan Distribution Amount to the Other Participants holding Vested Management LLC Units *pro rata* in proportion to the number of Vested Management LLC Units (if any) held by such Other Participants, in the case of clauses (i) and (ii), subject to Section 5.2 and subject to any and all adjustments necessary to give effect to the provisos set forth below in this Section 5.1(b) and to any and all distribution catch-ups set forth in the Award Agreements with respect to the Vested Management LLC Units; provided, however, that, if at the time of any distribution pursuant to this Section 5.1(b), none of the Other Participants hold any Vested Management LLC Units, the aggregate amount that otherwise would have been distributed to the Other Participants pursuant to clause (ii) of this Section 5.1(b) shall be re-allocated among, and distributed to, the JREF Entities holding Vested Management LLC Units in accordance with clause (i) of this Section 5.1(b); provided, further, however, no distributions shall be made in respect of a Vested Management LLC Unit under this Section 5.1(b) until there shall have been distributions under Section 5.02(a) of the Holdco LLC Agreement subsequent to the issuance of such Vested Management LLC Unit in an aggregate amount equal to the Distribution Threshold with respect to such Vested Management LLC Unit (the "Distribution Threshold Condition"); and in the event that any amount is not distributed in respect of any Vested Management LLC Unit under clause (i) or clause (ii) of this Section 5.1(b) because the Distribution Threshold Condition with respect to such Vested Management LLC Unit has not been satisfied, then the amount not so distributed shall be re-allocated among, and distributed to, the Participants who hold Vested Management LLC Units for which the Distribution Threshold Condition has been satisfied in accordance with such clause (i) or clause (ii), as applicable. For the avoidance of doubt, no distributions shall be made pursuant to this Section 5.1(b) in

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respect of any portion of the Plan Distribution Amount which is contingent, deferred or retained in accordance with the terms of any escrow or holdback applicable to the holders of membership interests in the Company or Holdco until such contingent, deferred, escrow or holdback amounts are paid to the Company by Holdco. All calculations and distributions made pursuant to this Plan shall be made by the Manager in good faith and shall be final and binding on all parties.

(c) Notwithstanding anything in the MIP LLC Agreement (including this Plan) to the contrary, the Company and therefore, the Participants, shall not be entitled to receive any portion of any Holdco Distribution unless and until all of the Holdco Members (other than the Company) have first received aggregate distributions pursuant to the Holdco LLC Agreement in respect of their Holdco Units in an amount equal to the aggregate amount of Holdco Capital Contributions theretofore made to Holdco with respect to such Holdco Units. In addition, with respect to the portion of a Holdco Distribution that is payable to the Company in the form of equity or other non-cash assets, if any, the Manager may, in the Manager's sole and absolute discretion, cause the Plan Distribution Amount to be paid in cash or such equity or non-cash assets or a combination thereof. For purposes of this Section 5.1, the value of any equity or non-cash assets shall be the fair market value thereof as of the date of determination, as reasonably determined by the Manager in good faith.

(d) Participants shall be entitled to receive their *pro rata* share, based on the amount of taxable income so allocated to each Participant, of each Tax Distribution Amount distributed by Holdco to the Company in accordance with Section 5.04 of the Holdco LLC Agreement. Any Tax Distribution Amount distributed to a Participant shall be treated as an advance against, and shall reduce, subsequent distributions to such Participant under the other provisions of this Agreement. All distributions under this Article V are subject to Section 9.9.

**5.2** *Distribution-Related Provisions*.

(a) All distributions to Participants under this Plan are subject to the MIP LLC Agreement (including this Plan) and the vesting, forfeiture and other provisions set forth in this Plan or such Participant's Award Agreement, if any (in which event such Award Agreement shall control in all respects, unless its terms expressly provide to the contrary). For the avoidance of doubt, no distributions shall be payable with respect to any membership interest represented by any Participant's Management LLC Units that are not Vested Management LLC Units or that are forfeited or terminated pursuant to this Plan or such Participant's Award Agreement.

(b) Upon the occurrence of a Sale of Holdco, any then Unvested Management LLC Units shall, subject to the vesting provisions set forth in Section 6.1, have no value and shall automatically, without further action, notice or deed, terminate upon the consummation of such Sale of Holdco. If a Sale of Holdco is consummated which results in an amount distributed to the Holdco Members under the Holdco LLC Agreement that is less than the Distribution Threshold applicable to a Management LLC Unit (after giving effect to any Distribution Threshold Adjustments made in accordance with Section 4.3), then such Management LLC Unit shall have no value and shall automatically, without further action, notice or deed, terminate in its entirety upon the consummation of such Sale of Holdco.

(c) Upon the consummation of a Sale of Holdco, each Active Employee who is offered employment or continuation of employment by Holdco or the acquiring company (or a Subsidiary or Affiliate of Holdco or the acquiring company) from and after the Sale of Holdco shall be entitled to a distribution with respect to the Participant's Vested Management LLC Units in an amount equal to sixty-seven percent (67%) of the aggregate amount of his or her distribution pursuant to Section 5.1; and the thirty-three percent (33%) balance shall be distributed to the Participant on the first anniversary of the

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consummation of the Sale of Holdco; provided that the Participant shall not be entitled to any portion of the thirty-three percent (33%) balance unless the Participant accepts the offer of employment and remains continuously employed by Holdco or the acquiring company (or a Subsidiary or Affiliate of Holdco or the acquiring company) during the twelve (12) month period following the Sale of Holdco. If, however, a Participant who is an Active Employee accepts the offer of employment and during the twelve-month period after the consummation of the Sale of Holdco the Participant's employment is terminated by the Participant's employer without Cause or by the Participant for Good Reason or the Participant's employment is terminated due to death or disability, the entire balance shall become payable upon the occurrence of that event. If upon the consummation of a Sale of Holdco an Active Employee is not offered employment or continuation of employment, he or she shall be entitled to distribution of the full amount of his or her distribution with respect to the Participant's Vested Management LLC Units as determined under Section 5.1. For purposes of this provision, a Participant shall not be considered to have been offered employment or continuation of employment unless the offer is for employment with duties of the same general nature as his or her duties prior to the Sale of Holdco and with a base salary at least as favorable as the base salary in effect for the Participant immediately prior to the Sale of Holdco.

(d) If a Participant who would otherwise be entitled to a distribution by the Company upon the Company's receipt of all or any portion of the Plan Distribution is indebted for borrowed money to the Company, Holdco or any other member of the Holdco Group and such indebtedness remains outstanding at the time that a distribution would be payable to such Participant under this Plan, then the Manager, in the Manager's sole and absolute discretion, may elect to reduce the amount of the distribution to the Company in the amount of such indebtedness (together with accrued and unpaid interest thereon, if any); in which case, the Manager shall reduce the amount of the distribution to such indebted Participant, dollar for dollar, by the amount of such indebtedness (together with accrued and unpaid interest thereon, if any) in repayment thereof and any such reduction shall be deemed to have been paid to the Participant and shall be returned to the Company, and the Company shall return such amount to Holdco, for distribution to the Holdco Members in accordance with Section 5.02(a) of the Holdco LLC Agreement.

(e) Notwithstanding anything in this Plan to the contrary, except as otherwise provided in a Participant's Separate Agreement, if a Participant has breached any of his, her or its obligations under any restrictive covenants under any Separate Agreement in any material respect to which such Participant is a party (including, without limitation, any obligations relating to non-competition, non-solicitation, non-disparagement, confidentiality, or assignment of rights), no payment or other distribution shall be made to a Participant under this Plan and his, her or its Management LLC Units (including any rights to payments or distributions not so made) shall be immediately and irrevocably forfeited (for no consideration and without further action, notice, or deed) in accordance with Section 6.2.

(f) If the consideration in connection with a transaction constituting a Sale of Holdco is not payable to Holdco (but is instead payable to the Holdco Members), pursuant to the Holdco LLC Agreement, the Manager shall take such action as may be necessary to put the Participants in the same economic position as they would have been in if the consideration in connection with the transaction had instead been paid to Holdco and were available for distribution by Holdco. Tax consequences to the Participants will not be taken into account for purposes of this Section 5.2(f).

**5.3** *Additional Provisions Relating to Management LLC Units Issued to Participants*. Upon an Initial Public Offering, each Participant's Management LLC Units shall be converted into or exchanged for common stock or other class of securities (the "IPO Stock") of the issuer in the Initial Public Offering (the "Issuer") of the same class that is registered in the Initial Public Offering as determined by the Manager, in the Manager's sole and absolute discretion. Except as otherwise provided in a Separate Agreement between the Company and a Participant or as otherwise determined in the sole

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and absolute discretion of the Manager (which may be determined on a case-by-case basis with no requirement to treat all Participants the same), any shares of IPO Stock so received, whether for Unvested Management LLC Units or Vested Management LLC Units, shall be restricted shares of IPO Stock ("Restricted Stock") that shall vest on the third (3rd) anniversary of the consummation of the Initial Public Offering (provided that the recipient is employed by or in other service with the Issuer or an Affiliate thereof on such vesting date) and shall thereupon cease to be Restricted Stock. All unvested shares of Restricted Stock shall be non-transferable and, except as otherwise provided in a Separate Agreement between the Company and a Participant, shall be forfeited upon termination of the recipient's employment or other direct or indirect service with the Issuer and its Affiliates, and otherwise subject to the terms of the governing plan documents that may be adopted by the Issuer in its absolute discretion.

**5.4** *Withholding*.

(a) Each Participant shall, to the fullest extent permitted by applicable law, indemnify and hold harmless each Person who is or who is deemed to be the responsible withholding agent for the Company for U.S. federal, state, local or non-U.S. income tax purposes against all claims, liabilities and expenses of any kind (other than any claims, liabilities and expenses in the nature of penalties and accrued interest thereon that result solely from such Person's fraud, willful misfeasance or gross negligence as determined in a final non-appealable order issued by a court of competent jurisdiction) relating to such Person's obligation to withhold and to pay over, or otherwise pay, any withholding or other taxes payable by the Company as a result of the Participant's participation or ownership of an interest in the Company.

(b) Notwithstanding any other provision of this Plan: (i) each Participant authorizes the Company to withhold and to pay over, or otherwise pay, any withholding or other taxes (including state unincorporated business taxes, taxes imposed under the Partnership Audit Rules and, in all cases, any interest, penalties, additions to tax, and expenses incurred in respect thereof) payable by the Company or any of its Affiliates with respect to such Participant or as a result of such Participant's participation in the Company; and (ii) if and to the extent that the Company shall be required to withhold or pay any such taxes (including any amounts withheld from amounts payable to the Company to the extent attributable, in the sole judgment of the Manager, to the interest of such Participant in the Company), the Participant shall be deemed for all purposes of this Plan to have received a payment from the Company as of the time such withholding or tax is required to be paid, which payment shall be deemed to be a distribution with respect to the Participant's interest in the Company to the extent that the Participant (or any successor to the Participant's interest in the Company) is then entitled to receive a distribution. To the extent that the aggregate of such payments to a Participant for any period exceeds the distributions to which the Participant is entitled for that period, the Participant shall make a prompt payment to the Company of such amount. The Manager may, in its sole and absolute discretion, satisfy any obligation of a Participant under this Section 5.4 out of future distributions to such Participant.

(c) If the Company makes a distribution in kind and such distribution is subject to withholding or other taxes payable by the Company on behalf of any Participant, the Participant shall make a prompt payment to the Company of the amount required to be withheld.

(d) A Participant's obligation to pay or indemnify for a tax (and related interest and penalties) shall survive the Participant selling or otherwise disposing of its interest in the Company and the termination, dissolution, liquidation or winding up of the Company.

**5.5** *Release*. Notwithstanding anything in this Plan to the contrary, except as otherwise provided in a Participant's Separate Agreement with the Company or any member of the Holdco Group, a Participant shall not be entitled to receive any distribution (as a Participant) in connection with a Sale

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of Holdco unless, prior to receipt of the distribution, he, she or it executes and delivers to the Company a full general release, in form and substance satisfactory to the Manager, under which the Participant releases and discharges the Manager, Holdco and each other member of the Holdco Group, and the Company and each of their respective Subsidiaries and Affiliates and their respective owners, partners, investors, members, officers, directors, managers, employees and agents, from any claim or cause of action of any kind, whether or not related to the Participant's employment or other service or the termination of the Participant's employment or other service, but excluding claims and causes of action relating to, (i) the Participant's right to a portion of the Plan Distribution from the Company in accordance with this Plan and the MIP LLC Agreement, (ii) the Participant's right to compensation, benefits and expenses accrued through the date of the consummation of the Sale of Holdco, (iii) the Participant's right to enforce the terms of any Separate Agreement between the Company or any member of the Holdco Group, on the one hand, and the Participant, on the other hand, that survive the Sale of Holdco (but only to the extent of the survival of such terms), (iv) the Participant's rights to directors' and officers' insurance coverage (if applicable) and (v) the Participant's rights to indemnification and exculpation under the Holdco LLC Agreement, the MIP LLC Agreement and applicable law, as applicable (a "Release").

## ARTICLE VI
## VESTING, FORFEITURE AND LIMITATION OF RIGHTS

**6.1** *Vesting*. Unless otherwise approved by the Manager and provided in such Participant's Award Agreement (in which event such Award Agreement shall control in all respects),[1] each of a Participant's Management LLC Units shall become vested as follows: twenty percent (20%) of such Management LLC Units shall vest on the first (1st) anniversary of the date of issuance of such Management LLC Units, and the remaining eighty percent (80%) of such Management LLC Units shall vest in forty-eight (48) equal monthly installments over the four (4) year period following the first (1st) anniversary of the date of issuance of such Management LLC Units, in each case, if and only if, the Participant is at the applicable time, and since the date of issuance of such Management LLC Units has continuously been, an Active Employee or a Parakeet Service Provider. Notwithstanding the foregoing, (i) upon the consummation of a Sale of Holdco (other than an Initial Public Offering), any and all of the Unvested Management LLC Units then held by each Participant shall become vested at the effective time of such Sale of Holdco; provided that such Participant (x) is an Active Employee or a Parakeet Service Provider upon the consummation of the Sale of Holdco, and (y) complies with the cooperation covenant set forth in Section 8.2 of the MIP LLC Agreement (with such compliance determined by the Manager in its sole and absolute discretion) in all material respects; (ii) at any time prior to the consummation of a Sale of Holdco (other than an Initial Public Offering), any and all of the Unvested Management LLC Units then held by each Asset Manager Participant shall become vested upon the earlier to occur of (x) the termination of service of the Asset Manager by Holdco without Cause (unless grounds for Cause exist at the time of termination, in which case, such termination shall be treated as for Cause retroactively upon the discovery thereof by any member of the Holdco Group) or (y) the termination of service of the Asset Manager by the Asset Manager for Good Reason; and (iii) the Management LLC Units of the JREF Entities shall be fully vested as of issuance in accordance with their Award Agreements.

**6.2** *Forfeiture of Management LLC Units.* Except as otherwise provided in a Participant's Award Agreement (or other Separate Agreement with the Company or any member of the Holdco Group), if a Participant's employment or other direct or indirect service with Holdco or any other member of the Holdco Group (a) terminates (other than pursuant to a deemed termination in accordance with Section 6.4 as a result of the termination of service of the Asset Manager) (i) by any member of the

[1] Note to Draft: Award Agreements for the JREF Entities will provide that their Management LLC Units will vest in full on date of grant.

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Holdco Group or the Asset Manager, as applicable, without Cause (unless grounds for Cause exist at the time of termination, in which case, such termination shall be treated as for Cause retroactively upon the discovery thereof by any member of the Holdco Group or the Asset Manager, as applicable), (ii) by the Participant with Good Reason, or (iii) as a result of his or her death or disability, the Participant, for no consideration and without further action, notice or deed, will immediately forfeit all of such Participant's then outstanding Unvested Management LLC Units and none of such Participant's Management LLC Units shall vest any further from and after such termination; or (b) terminates (including, for the avoidance of doubt, pursuant to a deemed termination in accordance with Section 6.4 as a result of termination of service of the Asset Manager) by any member of the Holdco Group or the Asset Manager, as applicable, for Cause or by the Participant without Good Reason, the Participant, for no consideration and without further action, notice or deed, will immediately forfeit all of such Participant's then outstanding Vested Management LLC Units and Unvested Management LLC Units. Without limitation of the foregoing, unless otherwise provided in a Participant's Award Agreement (or other Separate Agreement with the Company or any member of the Holdco Group), if a Participant breaches any Restrictive Covenant or a restrictive covenant under any Separate Agreement to which such Participant is a party (including, without limitation, any obligations relating to non-competition, non-solicitation, non-disparagement, confidentiality, or assignment of rights), all of such Participant's Management LLC Units, whether or not such Management LLC Units are then Vested Management LLC Units, shall be forfeited, for no consideration and without further action, notice, or deed, and such Participant shall thereupon have no further rights with respect to such Management LLC Units, and in the event of a breach of a Restrictive Covenant by a Participant, or upon a recharacterization as a for Cause termination as described above, upon demand by the Company, such Participant shall promptly repay to the Company any amounts already received under this Plan or an Award Agreement with respect to such forfeited Management LLC Units.

**6.3** *Repurchase Option; Repurchase Obligation.*

(a) (i) In the event that a Participant's employment or other direct or indirect service with any member of the Holdco Group terminates (other than pursuant to deemed termination of service in accordance with Section 6.4 as a result of the termination of service of the Asset Manager), (i) by any member of the Holdco Group or the Asset Manager, as applicable, without Cause, (ii) by Participant with Good Reason, or (iii) as a result of his or her death or disability (except as otherwise provided with respect to a Participant in such Participant's Separate Agreement with the Company or any member of the Holdco Group, if any, in which event, such Separate Agreement shall control), the Company will have the right (but not the obligation) (the "Repurchase Option") to purchase all or any portion of such Participant's Vested Management LLC Units (the "Optional Subject Units") in accordance with this Section 6.3 for an amount equal to their fair market value, as determined by the Manager, in its sole and absolute discretion, as of (x) the time of such termination of such Participant's employment or engagement or (y) the date of the redemption notice referenced in the following sentence, whichever is less. The Repurchase Option will be exercisable, in the Manager's sole and absolute discretion, by written notice to the Participant or the Participant's estate or representative, as the case may be, within three hundred sixty-five (365) days after the effective date of such termination of the Participant's employment or other direct or indirect service. Such notice shall specify the number of Subject Units being repurchased by the Company and the closing date for the repurchase (either a specific date or within a number of days after a specified date or event).

(ii) (A) In the event the Asset Manager's service with any member of the Holdco Group terminates (1) by any member of the Holdco Group without Cause or (2) by the Asset Manager with Good Reason, the Company shall purchase, in accordance with this Section 6.3 (the "Repurchase Obligation"), all, but not less than all, of the Vested Management LLC Units then held by each of the Asset Manager Participants (the "Mandatory Subject Units") for the amount that would have

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been received by such Asset Manager Participant in respect of such Mandatory Subject Units if Holdco were dissolved and its assets liquidated in accordance with Article IX of the Holdco LLC Agreement on the last day of the month in which such termination occurred, for a gross amount equal to the Fair Market Value on such last day of the month, with the Fair Market Value determined in accordance with the provisions of Section 6.3(a)(ii)(B), and the amount that would have been received by such Asset Manager Participant based on such Fair Market Value determined by the Manager in its sole and absolute discretion. The closing of the repurchase of the Mandatory Subject Units pursuant to this Section 6.3(a)(ii) shall take place at such time as determined by the Manager, in its sole and absolute discretion, but in no event more than one hundred and twenty (120) days after the date the Repurchase Obligation is triggered pursuant to Section 6.3(a)(ii)(A).

(B) Within ten (10) Business Days of the date the Repurchase Obligation is triggered pursuant to Section 6.3(a)(ii)(A), the Manager shall select and engage two (2) Appraisers, on such terms and conditions mutually determined by the Manager and the Asset Manager, to each render a determination of the Fair Market Value within ninety (90) days of its engagement. The midpoint between the determination of Fair Market Value by each Appraiser will be deemed the Fair Market Value and will be final and binding upon the parties. The cost of the engagement of each Appraiser shall be borne by Holdco.

(b) The purchase price for each of the Optional Subject Units and the Mandatory Subject Units (each, the "Subject Units") shall be paid by the Company, in the Manager's election, (i) in cash at closing, (ii) by set-off of any amounts then owed by the Participant to the Company or any member of the Holdco Group, (iii) by delivery of an unsecured promissory note subordinated and junior in right of payment to all other indebtedness of the Company, with customary terms and conditions, which shall be payable (A) with respect to the Optional Subject Units, in no more than five (5) equal annual installments (with interest on outstanding amounts compounded annually at the then "applicable federal rate" or successor thereto), with the first (1st) installment due on the first (1st) anniversary of the closing and the subsequent annual installments due on the successive anniversary dates of the closing, or (B) with respect to the Mandatory Subject Units, on or before the second ($2^{nd}$) anniversary of the closing (with interest on outstanding amounts compounded annually at the then "applicable federal rate" or successor thereto), or (iv) in any combination of the foregoing. The consummation of the repurchase of the Subject Units, and Participant's receipt of payment of the purchase price for such Subject Units, shall be subject to and conditioned upon (x) the Participant's execution and delivery to the Company of (1) a Release and (2) a power of attorney enabling the Manager to act on the Participant's behalf and in the Participant's stead with respect to the Subject Units, and (y) the Participant taking all steps appropriate and necessary to ensure that the Subject Units are delivered free and clear of all liens or encumbrances, including without limitation, permitting the Company (as determined by the Manager) to set off and satisfy any liens out of amounts otherwise payable as all or part of the purchase price of the Subject Units. The repurchase of the Subject Units shall be consummated upon the Company depositing the applicable purchase price into its attorneys' trust account or into an escrow account for the benefit of the Participant and no further notice, action or deed on behalf of the Company shall be required. Notwithstanding anything in this Plan to the contrary, in no event shall the purchase price of the Subject Units be payable by the Company hereunder unless and until the Release becomes valid and effective. The Company shall have the right to assign its repurchase rights hereunder to any third party as it so designates.

(c) If the Participant fails, for any reason, to tender the instruments required for the purchase and sale of the Subject Units at the time and place specified by the Company, the Participant shall be deemed to have assigned all of its right, title and interest in and to the Subject Units to the Company and the Participant shall cease to have any rights with respect to the Subject Units except only to receive the purchase price therefor as computed pursuant to this Section 6.3 and such Subject Units shall be deemed cancelled on the Company's books and shall no longer be outstanding. Upon the

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consummation of any repurchase hereunder, regardless of whether the Participant shall have received all or any portion of the purchase price, automatically and without further notice, action or deed, the subject Participant's membership interest in the Company in respect of the repurchased Subject Units shall be terminated.

(d) If the Repurchase Option with respect to any Participant was exercised following a termination of such Participant by any member of the Holdco Group or the Asset Manager without Cause in accordance with Section 6.3(a)(i) or the Repurchase Obligation was triggered by a termination of the Asset Manager by any member of the Holdco Group without Cause in accordance with Section 6.3(a)(ii), in each case, at a time when grounds for Cause existed, or if at any time any Participant breaches any Restrictive Covenant or a restrictive covenant under any Separate Agreement to which such Participant is a party (including, without limitation, any obligations relating to non-competition, non-solicitation, non-disparagement, confidentiality, or assignment of rights) (each, a "Breaching Participant"), then, upon demand by the Company, each Participant from whom the Company repurchased Subject Units in connection with such Repurchase Option or Repurchase Obligation or the Breaching Participant, as applicable, shall promptly repay to the Company the purchase price received for the Subject Units (and any promissory note issued therefor shall automatically be deemed, without further action, notice or deed, cancelled and void *ab initio*) as well as any amounts already received under this Plan or an Award Agreement with respect to the Subject Units, and such Participant shall thereupon be deemed, without further action, notice or deed, to have forfeited such Subject Units for no consideration.

**6.4** *Limitation of Rights*. None of the Participants shall have any right to be retained in the employ or engagement of any member of the Holdco Group or the Asset Manager (except as may be provided in such Participant's Separate Agreement, in which event, such Separate Agreement shall control in all respects), and nothing in the MIP LLC Agreement shall interfere in any way with the right of the employer or service recipient of any Participant to terminate such Participant's employment or other services at any time for any reason (or no reason) (except, in each case, as may be provided in such Participant's Separate Agreement, in which event, such Separate Agreement shall control in all respects). No employee or other person shall have any claim or right to be granted an Award under this Plan. Notwithstanding anything contained herein to the contrary, except as otherwise expressly set forth in this Plan, including Section 6.2 and Section 6.3, if at any time the Asset Manager's services with Holdco or any other member of the Holdco Group terminate for any or no reason, the indirect services of each Asset Manager Participant will automatically, without further action, notice or deed, be deemed to be terminated on the same basis.

## ARTICLE VII
## RESTRICTIVE COVENANTS

**7.1** *Confidentiality; Non-Competition; Non-Solicitation.* By accepting an Award, each Participant acknowledges that by virtue of his, her or its employment or other direct or indirect service with Holdco or any other member of the Holdco Group, he, she or it from time to time may obtain confidential and proprietary information concerning Holdco or one or more other members of the Holdco Group, and each of their respective businesses that is not readily available to the public, that Holdco and the other members of the Holdco Group are entitled to protection against wrongful use of any of that information and that the Company would not issue to the Participant a membership interest in the Company but for the covenants contained in this Section 7.1 (the "Restrictive Covenants"), which are made by each Participant for the benefit of the Company, Holdco and the other members of the Holdco Group and their respective equity holders. Accordingly, each Participant agrees that (except that to the extent of any conflict between this Section 7.1 on the one hand, and any Separate Agreement to which a Participant is a party, on the other hand, in which case, unless the terms of such Separate Agreement

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expressly provide to the contrary, the provisions which are more expansive or otherwise more favorable to the Holdco Group, including, without limitation, with respect to scope and duration, shall apply):

(a) While a Participant and at all times thereafter, the Participant shall maintain in strictest confidence (and shall use solely for the benefit of Holdco and the other members of the Holdco Group) all confidential information relating to each of the Business, the Company, Holdco, and the other members of the Holdco Group, including, without limitation, trade secrets, know-how, financial statements and data, contracts (whether oral or written), pricing policies, marketing plans and strategies, information regarding projects contemplated or under development, and business acquisition plans (collectively, the "Confidential Information"), and shall not, except in connection with the business affairs of Holdco and the other members of the Holdco Group disclose any Confidential Information to any person, other than with the express prior written consent of the Manager or the Participant's employer or as required by law or legal process. All memoranda, notes, lists, records and other documents (and all copies thereof) constituting or containing Confidential Information previously or hereafter made or compiled by the Participant or made available to the Participant concerning the Business shall be the property of Holdco or the applicable member of the Holdco Group, as the case may be, shall be kept confidential in accordance with the provisions of this Section 7.1, and shall be delivered to Holdco or the applicable member of the Holdco Group promptly upon termination of the Participant's employment or other direct or indirect service or at any earlier or later time upon the request of the Manager. Notwithstanding anything in the preceding sentence to the contrary, any Participant may disclose such Confidential Information (a) if required to do so by a court order, subpoena, or other legal process, (b) if required to fulfill legal and regulatory obligations, or (c) to such person's attorneys, accountants, or other advisors who agree to be bound by this Section 7.1, provided that, in the cases of clauses (a) and (b) above, the Participant gives adequate notice to the Manager or the Participant's employer of the pending disclosure and cooperates with any efforts of Holdco to obtain a protective order or other reliable assurance that confidential treatment will be accorded the Confidential Information, and, in the case of all disclosures permitted hereunder, the disclosure is limited to only those portions of such information that are necessary or required hereunder. The Participant acknowledges receipt of the following notice under the Defend Trade Secrets Act: (i) an individual will not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret if: (i) such individual makes such disclosure in confidence to a Federal, State, or local government official, either directly or indirectly, or to an attorney and such disclosure is made solely for the purpose of reporting or investigating a suspected violation of law; or (ii) such individual makes such disclosure in a complaint or other document filed in a lawsuit or other proceeding if such filing is made under seal.

(b) During the Restricted Period, the Participant covenants and agrees not to, directly or indirectly (including, without limitation, as an owner, officer, director, employee, consultant, contractor, investor, lender, advisor or agent), conduct, manage, operate, consult for, engage in or have an ownership interest in any business or enterprise (other than the Company or the other parties described in Section 7.1 above for whom these Restrictive Covenants are expressly intended to benefit or the Asset Manager, as applicable) engaged in, (i) the Business, or (ii) any activities that are otherwise competitive, in any geographic location in which any member of the Holdco Group currently conducts the Business or has proposed to conduct the Business, with a material portion of the service provider businesses of Holdco or any member of the Holdco Group, as then conducted, or which Holdco or any member of the Holdco Group has taken material steps toward conducting; provided, however, that the Participant may own, directly or indirectly, solely as a passive investment, securities of any publicly traded Person if the Participant is not a controlling person of, or a member of a group that controls, such Person, and does not, directly or indirectly, own two percent (2%) or more of any class of securities of such Person.

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(c) During the Restricted Period, the Participant shall not, directly or indirectly, (i) solicit or encourage any employee, officer, director, consultant or other service provider of Holdco or any member of the Holdco Group to leave the employment or engagement thereby; or (ii) hire any employee or former employee or any officer or director of Holdco or any member of the Holdco Group.

(d) During the Restricted Period, the Participant shall not, directly or indirectly, solicit or encourage any Person who works with, or is in a dialogue with, or is a supplier, customer, client, distributor, or advertiser of, Holdco or any member of the Holdco Group to discontinue or diminish such Person's business relationship with Holdco or any member of the Holdco Group, as the case may be.

(e) The Participant agrees that, during the Participant's employment or other direct or indirect service with Holdco or any other member of the Holdco Group and thereafter (including following the Participant's termination of employment or direct or indirect service for any reason), the Participant will not make statements or representations, or otherwise communicate, directly or indirectly, in writing, orally, or otherwise, or take any action which may, directly or indirectly, disparage or negatively affect any member of the Holdco Group or their respective owners, partners, investors, members, officers, directors, employees, advisors, agents, businesses or reputations.

(f) In the event that the Participant's employment or other direct or indirect service with Holdco or any other member of the Holdco Group terminates, the Participant shall return to the Participant's employer (or the entity that has otherwise engaged the Participant) any and all property, documents and/or information of the employer/engaging entity and any other member of the Holdco Group (including but not limited to information or materials prepared or made by the Participant) which may be in the Participant's possession, including but not limited to materials, computers, laptops, hard drives, hardware, software, data storage devices, memoranda, notes, records, reports, designs, sketches, plans, programs, printouts, or other documents as well as all copies thereof and files related thereto.

(g) The provisions of this Section 7.1 may be assigned by the Company or Holdco to the purchaser or other acquirer in connection with any transaction that results in a Sale of Holdco (in which event the provisions of this Section 7.1 shall continue to be binding upon the Participant and shall be enforceable by the purchaser or other acquirer).

(h) Each Participant acknowledges that: (a) the Participant has had an opportunity to seek advice of counsel in connection with all of the provisions of this Plan (as well as the balance of the MIP LLC Agreement and the Participant's Award Agreement) including, without limitation, the Restrictive Covenants contained herein; (b) the Restrictive Covenants are reasonable in scope and in all other respects; (c) any violation of the Restrictive Covenants will result in irreparable injury to the Company, Holdco or any other member of the Holdco Group, as applicable; (d) money damages would not be an adequate remedy to the Company, Holdco or the member(s) of the Holdco Group, as applicable, in the event of a breach or threatened breach of any of the Restrictive Covenants by the Participant; and (e) specific performance in the form of injunctive relief would be an appropriate remedy in such case for the Company, Holdco or the member(s) of the Holdco Group, as applicable. If a Participant breaches or threatens to breach a Restrictive Covenant, the Company or Holdco or any other member(s) of the Holdco Group, as applicable, shall be entitled, in addition to all other remedies, to an injunction restraining any such breach, without any bond or other security being required and without the necessity of showing actual damages. In the event of an alleged breach or violation by a Participant of this Section 7.1, the Restricted Period will be tolled (and added thereto) until such alleged breach or violation is finally resolved.

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(i) To the extent that any part of this Section 7.1 may be invalid, illegal or unenforceable for any reason, it is intended that such part will be enforceable to the extent that a court of competent jurisdiction will determine that such part, if more limited in scope, would have been enforceable, such part will be deemed to have been so written and the remaining parts will be effective as written and enforceable in all events and the Participant agrees to request that such court enforce this Section 7.1 as if so written. Without limiting the foregoing, if any provision of this Section 7.1 is held to be invalid, illegal or unenforceable in any respect under any applicable law or rule in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other jurisdiction.

## ARTICLE VIII
## ENTIRE AGREEMENT; AMENDMENT

**8.1** *Entire Agreement; Amendment*. The MIP LLC Agreement (including this Plan), together with each Participant's Award Agreement, Separate Agreement (solely as to that Participant), if any, the Asset Management Agreement and the Holdco LLC Agreement contain a complete statement of the arrangements among the Participants and the Manager with respect to the Company and supersedes all prior agreements and understandings among them with respect to the Company. This Plan may be amended, modified or supplemented and any provision herein may be waived, in each case, by the Manager, in its sole and absolute discretion, at any time and from time to time, and in any manner (including, without limitation, to change the number of Management LLC Units that may be issued by the Company or to resign and/or appoint a successor Manager); provided, however, that no amendment, modification, supplement or waiver that materially and adversely affects a Participant (other than any amendment, modification, supplement or waiver that affects all Participants in a proportional manner or that are made to reflect changes in the capital structure of Holdco or that are made in connection with any merger, consolidation or other business combination) may be made without the written approval of the Participant who would be disproportionately affected thereby; provided, further, however, notwithstanding the foregoing, the Manager may change the aggregate number of Management LLC Units even if such change would dilute then existing Participants. All amendments, modification, supplements or waivers to this Plan approved pursuant to this Section 8.1 shall be binding on all Participants (whether or not such Participant consented to such amendment, modification, supplement or waiver). Notwithstanding anything in this Plan to the contrary, each of the Company and Holdco and any other member of the Holdco Group (as applicable), shall have general authority to enter into one or more Separate Agreements with a Participant and neither the Company nor Holdco nor any other member of the Holdco Group (as applicable) shall be prohibited or precluded by this Plan from entering into any such Separate Agreement on terms that deviate from the terms of this Plan, and to the extent of any conflict between this Plan and such Separate Agreement, such Separate Agreement shall control unless the terms of such Separate Agreement expressly provide to the contrary.

## ARTICLE IX
## MISCELLANEOUS

**9.1** *No Effect Upon Benefits*. By acceptance of any Award under this Plan, each Participant agrees that neither the Award nor any amount paid under this Plan or an Award Agreement will affect the benefits under any benefit plan of any member of the Holdco Group or except as otherwise set forth in a Separate Agreement between such Participant and the Asset Manager, the Asset Manager, nor shall the Award or any amount paid under this Plan or an Award Agreement be considered compensation for purposes of any other benefit plan or program of any member of the Holdco Group or except as otherwise set forth in a Separate Agreement between such Participant and the Asset Manager, the Asset Manager.

**9.2** *Non-transferability*. Except as otherwise provided in the MIP LLC Agreement or a Participant's Separate Agreement with the Company or any member of the Holdco Group, no Participant

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may sell, transfer, assign, pledge, grant a security interest in or otherwise dispose of or encumber, directly or indirectly ("Transfer"), all or any portion of his, her or its Management LLC Units (other than Transfers of Vested Management LLC Units by will or by the laws of descent and distribution), and any such purported Transfer shall be void. Each Participant shall indemnify the Company and any other affected member of the Holdco Group for any and all related expenses and liabilities in the event that such Participant Transfers any of his, her or its Management LLC Units in violation of the provisions of this Section 9.2.

**9.3** *Market Standoff*. By accepting an Award, each Participant agrees that, during (i) such period (which period shall in no event exceed one hundred and eighty (180) days, subject to any customary "booster shot" extensions) following the effective date of a Registration Statement filed in connection with the Initial Public Offering of Holdco, as Holdco (or its designee) agrees to with the underwriter or underwriters of such offering and (ii) such period (which period shall in no event exceed ninety (90) days, subject to any customary "booster shot" extensions) following the effective date of a Registration Statement filed subsequent to the Initial Public Offering of Holdco as Holdco (or its designee) agrees to with the underwriter or underwriters of such offering and/or Holdco (if applicable), it shall not, to the extent requested by Holdco (or its designee) and/or any underwriter, directly or indirectly, make any short sale of, loan, grant any option or right to purchase of, enter into any hedging agreement, derivative transaction (cash settled or otherwise) or establish any "put equivalent position" within the meaning of Rule 16(a)-1(h) of the Exchange Act, or otherwise Transfer or dispose of (other than to donees who agree to be similarly bound) any IPO Stock owned by it at any time during such period, except IPO Stock included in such registration; provided that any release of IPO Stock from such agreement shall be effected among the Participants on a pro rata basis according to the IPO Stock then owned by them. Each Participant agrees that it shall deliver to the underwriter or underwriters of any offering to which clause (i) or (ii) is applicable to such Participant a customary agreement reflecting its agreement set forth in this Section 9.3.

**9.4** *Section 83(b) Election.* In connection with the Award of Management LLC Units to a Participant and by accepting the Award, each Participant agrees to make a timely protective election pursuant to Section 83(b) of the Code to include in such Participant's gross income the fair market value of such Management LLC Units. In the event a Participant fails to file a fully executed Section 83(b) Election Form with the Internal Revenue Service in the form attached to the Award Agreement in respect of the full amount of Management LLC Units subject to an Award, as of the issuance date, and submit a copy to the Company and the Manager prior to the thirtieth ($30^{th}$) day after the issuance of the Management LLC Units, the Company will have the right (but not the obligation) at any time to cancel all or a portion of the Participant's Management LLC Units for no consideration.

**9.5** *Section 409A.* No Award or Management LLC Unit is intended to constitute or provide for "nonqualified deferred compensation" within the meaning of Section 409A of the Code and regulations and guidance promulgated thereunder ("Section 409A"). To the extent that any provision of this Plan is ambiguous as to its compliance with Section 409A, the provision shall be read in such a manner so that no payments due under this Plan shall be subject to an "additional tax" as defined in Section 409A(a)(1)(B) of the Code. To the extent any amount payable to a Participant under this Plan would be subject to any additional taxes or penalties imposed under Section 409A, the Manager may, in the Manager's sole and absolute discretion, reform the provisions of this Plan and/or any Award Agreement to the extent necessary so as to avoid such additional taxes or penalties without the consent of any Participant (and regardless of whether such actions, interpretations, or changes may adversely affect a Participant); provided, however, that nothing in this Section 9.5 shall create any obligation on the part of the Company, Holdco or any member of the Holdco Group to adopt any such amendment or take any other such action or incur any liability for failure to do so. For purposes of Section 409A, each payment made under this Plan shall be treated as a separate payment. In no event may any Participant, directly or

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indirectly, designate the calendar year of any payment hereunder, and in no event whatsoever shall any member of the Holdco Group be liable for any additional tax, interest or penalties that may be imposed under Section 409A on any Participant or other person as a result of any payment made hereunder, or for any damages for failing to comply therewith.

**9.6** *MIP LLC Agreement*. This Plan is subject in all respects to the terms and conditions set forth in the MIP LLC Agreement. This Plan has been incorporated into and made a part of the MIP LLC Agreement as if set forth at length therein.

**9.7** *Acknowledgment*. By accepting an Award, each Participant acknowledges that, subject to the terms of the Holdco LLC Agreement, each Holdco Member and their respective Affiliates may, at any time and from time to time, engage in and possess interests in other business ventures of any and every type and description, independently or with others, including those in competition with the Company, Holdco and/or any member of the Holdco Group with no obligation to offer to the Company, Holdco and/or any member of the Holdco Group or to any Participant the right to participate therein.

**9.8** *Limitations on Rights of Participants*. Except as otherwise stated in the MIP LLC Agreement or the Holdco LLC Agreement, nothing in the MIP LLC Agreement (including this Plan) shall: (a) limit the Manager's right to manage the affairs of the Company; (b) limit the right of the Holdco Manager to manage, directly or indirectly, the business and affairs of Holdco or any of its Subsidiaries or Affiliates and to determine in the sole and absolute discretion of the Holdco Manager the terms of any transaction between Holdco or any of its Subsidiaries or Affiliates, on the one hand, and any third party, on the other hand; or (c) give any Participant any claim against the Company, the Manager, Holdco or any of their respective Subsidiaries with respect to any good faith decision relating to the business or affairs of the Company, the Manager, Holdco or any of their respective Subsidiaries or with respect to any such transaction with a third party (whether or not that decision affects any distribution to which such Participant may be or would have been entitled under this Agreement, this Plan or any such Participant's Separate Agreement). None of the Participants shall have any rights as Participant Members except as specifically provided in the MIP LLC Agreement, the Holdco LLC Agreement, or as provided by any such Participant's Separate Agreement with the Company or any member of the Holdco Group. None of the Participants shall, by virtue of their membership interest in the Company, be considered a member of, a third party beneficiary of, or otherwise have any rights with respect to Holdco or any of its Subsidiaries or Affiliates or under the Holdco LLC Agreement.

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## ARTICLE X
## EXECUTION

**IN WITNESS WHEREOF**, the Company has caused this Plan to be executed in its name and on its behalf by its duly authorized officer as of the Effective Date.

**PARAKEET HOLDCO II MIP, LLC**
By: Parakeet HoldCo II, LLC, its manager

DocuSigned by:
By: Bryan Laplant
41A068C2EA77420...
Name: Bryan LaPlant
Title: Authorized Signatory